

GUARDIANSHIP OF JACOB PELTON-HERNANDEZ

CASE NUMBER: 26PG-0033408

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for hearing on a Petition for Appointment of Guardian of the Person. The Petition was filed by the minor's non-relative caregivers, Christian and Heather Data. Letters of Temporary Guardianship issued on May 29, 2026, and are set to expire today unless further extended.

The mother has nominated Petitioners, consented to the guardianship, and waived notice. Proof of service has been filed for the maternal grandparents. The Court dispenses with notice to the sibling. There is no proof of service of the Notice of Hearing and Petition for the father or paternal grandparents and insufficient information has been provided to permit the Court to dispense with notice to these parties. The Court notes the declaration filed on May 27, 2026, indicates that the father is unknown; however, the Children's Services report has identified the minor's father. The father must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Alternatively, the above parties can sign a consent and waiver of notice (GC-211, section 4), in lieu of being served.

The Court has reviewed the Children's Services report filed on June 22, 2026, which recommends granting the Petition. The report indicates the mother is now objecting to the Guardianship, though a formal objection has not been filed.

The Court will inquire whether the child is or may be an Indian child. If Petitioners have reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage. This matter is continued to **Monday, August 3, 2026, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is **ORDERED** to remain in effect until the continued hearing date. Petitioners are required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the Petition, on the parties identified above. In the alternative, if Petitioners cannot serve the parties identified, the Court will require a declaration explaining in detail all efforts of Petitioners to locate and serve them and why they cannot be served, to permit the Court to dispense with notice. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**